

Stereo. HCJDA 38
JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.44024/2025

Dr. Uzma Hamid Siddiqui

Vs.

Inspector General of Police, Punjab, and others

JUDGMENT

Dates of hearing:	24.07.2025 & 25.07.2025
For the Petitioner:	Ms. Shazia Malik, Advocate.
For the Respondents:	Mr. Sittar Sahil, Assistant Advocate General.
<i>Amici curiae:</i>	Hafiz Tariq Naseem, Senior Advocate Supreme Court, and Barrister Shahryar Riaz.

Tariq Saleem Sheikh, J. – The Petitioner and her family members were nominated in FIR No. 570/2016 dated 22.04.2016 registered at Police Station Islampura, Lahore, under sections 420, 468, and 471 PPC when she was a medical student. Upon completion of the investigation, the police submitted a report under section 173 Cr.P.C. before the Judicial Magistrate, Lahore. The Petitioner and her co-accused moved an application under section 249-A Cr.P.C. during the proceedings, which was allowed by order dated 31.07.2017, and they were acquitted of the charge.

2. The Petitioner intended to pursue education in Australia. Therefore, she applied for a Police Record Certificate (PRC) which the Capital City Police, Lahore, issued to her on 12.07.2025 with the following statement:

“As per available record of Police Station(s), the Applicant has:

Case FIR	Offence u/s	Status	Remarks
570/16, Islampura, Lahore	420, 468, 471 PPC	Acquitted or discharged from Court of Law as State/Prosecution withdrew the case under section 494 Cr.P.C.	Not involved. No adverse effect.

As per available record, she has not been convicted regarding any criminal activity by any court of law.”

3. The Petitioner apprehends that the above-mentioned entry in the PRC could lead the Australian Embassy to reject her visa application. She, therefore, petitioned Respondent No.2 to omit it and issue her a revised PRC but he did not respond. Through this petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the “Constitution”), she prays that the Respondents be directed to delete her name from the Police Station Record Management System (PSRMS) and Criminal Record Management System (CRMS), and issue her a fresh PRC without mentioning FIR No.570/2016.

4. The Petitioner submits that she is a law-abiding citizen, belongs to a family of good repute, and has never been involved in any criminal activity. Her paternal uncle lodged false FIR No. 570/2016 against her, her mother, and siblings to deprive them of the inheritance left by her late father. All of them were subsequently acquitted of the charge. In the circumstances, all allegations in the FIR must be treated as non-existent, and its mention in the impugned PRC is unlawful and unjustified. It defeats the very purpose and legal effect of the acquittal. The Petitioner relies on **Waqas Khan and others v. The State** (PLD 2025 Peshawar 67) in support of this submission.

5. The Petitioner further contends that PRC No. LHR-10401785 dated 12.07.2025 does not correctly reflect the factual and legal basis of her acquittal. It records that she was “acquitted or discharged from the court of law as State/Prosecution withdrew the case under section 494 Cr.P.C.,” while according to the judicial record, the Magistrate acquitted her under section 249-A Cr.P.C. by a reasoned order dated 31.07.2017. The Petitioner submits that this mis-statement undermines the authenticity of the PRC and infringes her fundamental right to dignity.

6. This Court issued notices to the Respondents on this petition. Respondent No.1, Inspector General of Police, Punjab (IGP), filed a report, submitting that the Punjab Police have introduced PSRMS and CRMS under his direction, which serve as digital repositories of FIRs, index entries, and case files. The FIR and its index constitute a perpetual and permanent record, and, under Rule 24.5 of the Police Rules, 1934 (“Police Rules”), are required to be preserved for a period of sixty years. Consequently, the record of any individual accused in an FIR cannot be

deleted, though his status may be updated in the index card maintained by the Criminal Record Office (CRO) in accordance with court decisions. Respondent No.1 stated that the same procedure was followed in the Petitioner's case. Her status was updated in PSRMS and CRMS after her acquittal in FIR No.570/2016.

7. Respondent No.1 submitted that maintaining internal records of reported incidents, including FIRs, is essential for various purposes, such as preserving institutional memory, conducting statistical and trend analysis, and facilitating coordination and information-sharing among government and law enforcement agencies. He contended that, so long as such data is used strictly for lawful administrative purposes and is not disclosed or misused in a manner prejudicial to individual rights, its retention does not violate any fundamental right under the Constitution.

8. Respondent No.1 further submitted that in **Zulfiqar Ali v. Ex officio Justice of Peace and others** (PLD 2023 Lahore 512), this Court issued detailed guidelines for the police regarding the presentation of an individual's criminal history. Pursuant to these directives, and in light of the applicable laws, a new format for the Character Certificate/PRC was introduced and circulated to the CCPO Lahore and all RPOs, CPOs, and DPOs in the Punjab by letter dated 25.02.2025. This format has since been incorporated into the police IT system, and all PRCs are now issued in this standardized version. The Petitioner was issued PRC No. LHR-10401785 dated 12.07.2025 by the Capital City Police, Lahore, in response to her request and based on factual information that she has not disputed.

9. Respondents No. 2 to 8 have adopted the report submitted by Respondent No.1. They further state that the impugned PRC format contains enhanced security features, including a QR code and a verification URL, which allow a person to authenticate the certificate. They maintain that digitization has not altered the legal character of the FIR index but has merely converted it from paper to electronic form.

10. This case raises the following questions of law:

- (a) Whether the Police Record Certificates (PRCs) issued in their current form have any legal basis and are otherwise sustainable under the law?
- (b) Whether the inclusion of an acquitted case in a PRC violates the rights to dignity and to be dealt with in accordance with law under Articles 14 and 4 of the Constitution?

11. The above questions involve the interpretation of constitutional provisions and statutory law. Hence, this Court issued notice under Order XXVII-A CPC to the Advocate General, Punjab. Additionally, Hafiz Tariq Naseem, Advocate, and Barrister Shahryar Riaz were appointed *amici curiae*.

Advocate General's submissions

12. The Advocate General, Punjab, Mr. Muhammad Amjad Pervaiz, filed a detailed note pursuant to the notice under Order XXVII-A CPC. He raised a preliminary objection that this petition is premature under the doctrine of ripeness. According to him, the Petitioner's case rests solely on an apprehension that the Australian Embassy may form an adverse view and reject her visa application due to the mention of FIR No. 570/2016 in her PRC. Referring to **Muhammad Hammad-ur-Rehman Zafar v. Director, Federal Investigation Agency, and another** (PLD 2022 Lahore 177), he contended that constitutional jurisdiction cannot be invoked to remedy speculative harms or to forestall administrative consequences that have not yet occurred.

13. On the merits, the Advocate General submitted that Chapter XXIV of the Police Rules prescribes a comprehensive framework for recording and preserving crime data. Rule 24.5 mandates that the information regarding a cognizable offence be entered in the First Information Report Register, a printed book in Form 24.5(1), sequentially numbered, with each entry made in quadruplicate by carbon copying for distribution to designated recipients. It further requires that the particulars contained in the charge-sheet be entered on the reverse side of the original leaf on conclusion of the case. In 2024, Notification No. 14/EXEC-III dated 02.01.2024 replaced the paper registers with a digital regime. It directed that every FIR be entered in Form 24.5(1), assigned a unique annual serial number, and reproduced in five QR-coded copies for legal purposes. Both hard and digital records are to be preserved on a central server for sixty years. A subsequent notification issued in April 2025 reaffirmed this retention period and streamlined the digital process under the supervision of the Provincial Police Officer. The Advocate General added that the Police Rules also prescribe a detailed procedure for cancellation of false or malicious FIRs and those registered in respect of

non-cognizable offences. According to him, this scheme ensures continuity and completeness in police record-keeping.

14. The Advocate General stated that Article 10(3) of the Police Order 2002 (the “Police Order”) authorizes the Provincial Police Officer, the Capital City Police Officer, and the City Police Officer to issue Standing Orders for efficient functioning, provided they are consistent with the Police Order and the Police Rules. Concurrently, the Punjab Right to Public Services Act 2019 (the “PRPSA”) envisions an e-Governance system that obliges all departments to deliver public services to eligible persons within prescribed timelines. The Advocate General contended that, read together, these provisions furnish the legal basis for maintaining and disclosing a citizen’s FIR history and case outcomes (upon request) with the public through e-governed portals or service counters. He added that, in exercise of powers under Article 10(3) of the Police Order and section 10 of the PRPSA, the IGP has issued various Standing Orders and Standard Operating Procedures (SOPs) to regulate the issuance of PRCs. Standing Order No. 2 of 2024 establishes data protection protocols within the police record system and provides a comprehensive procedure for rectifying and erasing entries in appropriate cases. Letter No. 600-49/PCB dated 25.02.2025 (which supersedes Letter No. 419-49/PCB dated 20.02.2025) introduces the following revised format for PRCs:

Sr.#	Accused Status	Remarks on Character Certificate
1	Acquitted from court of law.	Not involved. No adverse effect.
2	Acquitted or discharged from court of law as State/prosecution withdrew the case under section 494 Cr.P.C.	Not involved. No adverse effect.
3	Discharged from the case under section 265-L Cr.P.C. as State through Advocate General opted not to prosecute him/her	Not involved. No adverse effect.
4	Found not involved in the offence during investigation and not sent for trial to court	Not involved. No adverse effect.
5	Cancelled by police during investigation and agreed by the court	Not involved. No adverse effect.
6	Found innocent during investigation and agreed by the court	Not involved. No adverse effect.
7	Discharged during investigation and agreed by the court.	Not involved. No adverse effect.
8	Acquitted from court of law based on compromise under section 345 Cr.P.C. and as per 345(6) Cr.P.C. compromise has effect of acquittal	No adverse effect.
9	The case is under investigation	
10	Trial pending in court of law	Trial pending
11	Proclaimed offender	Wanted by police
12	Court absconder	Wanted by court
13	Convicted by court of law	
14	Sent on probation due to tender age/good character etc.	No adverse effect
15	Fine imposed by court of law	

15. The Advocate General explained that, notwithstanding the above statutory and administrative framework, the disclosure of the record is citizen-driven and consent-based. The police do not disclose a citizen's FIR history or case outcomes to any third party, including foreign embassies, consulates, or external authorities, on their own initiative. A PRC is issued only when an individual applies in person through a Khidmat Markaz counter, the Tahafuz Markaz global portal, or under the PRPSA, provides the required documents, and the system verifies their identity. The police then retrieve the relevant data and compile it into the certificate.

16. The Advocate General argued that the issuance of a PRC which reflects an FIR but also records the subsequent acquittal does not infringe the Petitioner's fundamental rights. He placed reliance on **R (on the application of AR) v. Chief Constable of Greater Manchester Police** [2018] UKSC 47.

17. Lastly, the Advocate General referred to broader policy considerations. He contended that the unilateral masking or deletion of FIR entries, even after acquittal, would weaken the credibility of PRCs in the eyes of foreign governments. In his view, a PRC must maintain a balance between individual rights and institutional transparency. Some people urge that acquittals and pending proceedings should never be disclosed, but such a blanket omission overlooks the legal and administrative implications. A more principled course is to record the FIR together with the final judicial outcome, such as "acquitted" or "no adverse effect." He submitted that this approach guards against misinterpretation while protecting the citizen's right to dignity and reputation. It also assures employers, licensing authorities, and foreign governments that the record is accurate and complete. Concealment of prior proceedings, even where they ended in acquittal, may create doubts about the reliability of Pakistan's verification systems.

Amici curiae's submissions

18. Hafiz Tariq Naseem, Senior Advocate Supreme Court, submitted that there is no provision in the Police Order, the Police Rules, or any other statute that authorizes the public disclosure of non-conviction records, whether relating to acquittals, discharges, pending investigations, for purposes such as employment, visas, or character verification. The

provisions relied upon by the Advocate General pertain exclusively to internal record-keeping for police administration and investigation. Mr. Naseem emphasized that record-keeping is an internal administrative function, while disclosure is a distinct State action having constitutional consequences. Under Pakistan's constitutional scheme, the executive has no inherent power and must act strictly in accordance with law. Any measure that affects liberty, dignity, or economic opportunity must be based on an express statutory mandate that defines its scope, prescribes safeguards, and provides for redress. No such authority exists in this case. He maintained that empirical and academic studies show that mere association with criminal proceedings, even when followed by acquittal, leaves a lasting stigma that affects employment, education, visas, and social standing. Mr. Naseem contended that the Advocate General's argument that a statement such as "no adverse effect" neutralizes this harm is unpersuasive. The stigma lies in the association itself, not in the absence of a legal penalty. He concluded that the inclusion of criminal cases resulting in acquittal in a PRC is unconstitutional, unlawful, and infringes Articles 4 and 14 of the Constitution.

19. Barrister Shahryar Riaz submitted that when a court of competent jurisdiction acquits an accused, the legal effect is as if the charge never existed. This necessarily requires the exclusion of any record referring to such criminal proceedings. The same principle applies where an accused is discharged or the case is cancelled. In these situations, the presumption of innocence remains intact, and there is no pending proceeding against the individual. In legal terms, no adverse finding exists, and the individual stands in the same position as if they had never been prosecuted. To disclose such matters in official certificates is to attribute legal consequences to events that have no continuing relevance.

Opinion

Maintainability

20. The threshold issue of maintainability must be addressed at the outset. The doctrine of ripeness holds that a matter is not amenable to adjudication in the High Court's constitutional jurisdiction if it is either premature or not ripe, i.e., the impugned action or executive measure does not give rise to a tangible grievance capable of legal redress. In

Mughal-e-Azam Banquet Complex v. Federation of Pakistan and others

(2011 PTD 2260), this Court explained that the doctrine of ripeness requires that a dispute be sufficiently mature and substantial to warrant judicial intervention. Courts insist on a concrete factual context so that the issues are clearly defined and the competing positions can be properly assessed. The purpose is to avoid adjudicating abstract or hypothetical disputes, to conserve judicial resources, and to benefit from any factual or administrative record that may develop before the matter reaches the courts. In **Sabira Khatoon v. Government of the Punjab and others** [2021 PLC (C.S.) 1600], the Court elaborated that “ripeness is a doctrine which courts use to enforce prudential limitations upon their jurisdiction.” It rests on the principle that judicial resources should be conserved and that courts should confine themselves to addressing actual, present, or imminent disputes, rather than engaging in theoretical or abstract questions with no immediate bearing on the parties.¹

21. In the present case, the Petitioner’s grievance is neither abstract nor conjectural. It concerns the contents of a PRC that has already been issued to her. The certificate is intended to be submitted as part of a student visa application to a foreign government. The inclusion of an FIR reference may result in the denial or delay of a visa and cause reputational harm. The adverse consequences are therefore real and immediate. The Advocate General’s objection to the maintainability of this petition on the ground of prematurity is misconceived and is overruled.

Disclosure of criminal records: Legal position in various countries

22. The expression “criminal record” generally refers to data maintained by law enforcement agencies and criminal courts concerning arrests, charges, trials, and their outcomes. It may also encompass criminal-history information compiled from official sources and processed by private entities for verification or background-screening purposes.² Although such records are often regarded as public information, the scope of access varies depending on the nature of the record and the requesting

¹ Also see: *Messrs Syed Jamil & Company (Private) Limited v. Pakistan Railways and others* (2021 PTD 1016), *Muhammad Hammad ur Rehman Zafar v. Director, Federal Investigation Agency, and another* (PLD 2022 Lahore 177), and *Messrs Sadiq Poultry (Private) Limited v. Federation of Pakistan and others* (PLD 2025 Lahore 57).

² Sarah Lageson and Robert Stewart, ‘*The Problem with Criminal Records: Discrepancies between State Reports and Private-Sector Background Checks*’ (2024) *Criminology* 62(1) 5–34 <https://onlinelibrary.wiley.com/doi/10.1111/1745-9125.12359>

authority. Many jurisdictions have comprehensive legal frameworks to regulate the disclosure of criminal-record information and to safeguard individuals who have been acquitted or otherwise exonerated. These frameworks are premised on the recognition that indiscriminate and unwarranted disclosure of non-conviction data undermines dignity, impedes rehabilitation, and creates unjust barriers to employment and social reintegration.

United States

23. In the United States, criminal records disclosure is governed by a decentralized legal framework. Each state prescribes its own rules, while federal law separately regulates (i) consumer reporting agencies that compile background checks and (ii) the collection and dissemination of criminal history data maintained in government repositories. The Fair Credit Reporting Act (FCRA), a federal law, regulates private background check agencies and limits the reporting of non-conviction information to seven years for jobs paying under \$75,000 annually. There is no seven-year limit on reporting conviction information, but some states have enacted their own restrictions. Separately, the Equal Employment Opportunity Commission (EEOC) prohibits employers from using criminal history in a discriminatory way. A policy that disproportionately screens out applicants of a protected class may be unlawful if it is not job-related and does not meet the standard of business necessity.

24. The Fair Chance Act, subject to certain exceptions, prohibits the federal government and private-sector federal contractors from asking about job applicants' arrest and conviction records until a conditional offer of employment has been extended, an approach that has become known as "ban the box". The Act's prohibition on pre-offer inquiries extends to records that have been "sealed or expunged pursuant to law," and sealed records of juvenile adjudications.³ Many states have adopted similar laws.

25. There is no general federal expungement statute, and federal courts have no inherent authority to expunge a valid federal conviction.⁴ However, the Federal First Offender Act provides a narrow exception. It

³ 5 U.S.C. § 9201(4)(B) and (C).

⁴ See, e.g., *United States v. Jane Doe*, 833 F.3d 192 (2d Cir. 2016), vacating 110 F. Supp. 3d 448 (E.D.N.Y. 2015); *United States v. Crowell*, 374 F.3d 790, 792-93 (9th Cir. 2004), cert. denied, 543 U.S. 1070 (2005).

permits expungement of a single offence for simple drug possession committed by a first-time offender under the age of 21, subject to prescribed conditions.⁵ At the state level, several jurisdictions provide automatic sealing or set-aside after defined waiting periods for specified categories of offences, while others require a petition and proof that statutory criteria are met, sometimes with a balancing of public-safety and rehabilitation considerations. Many schemes distinguish between misdemeanours and felonies, allowing relief for some lower-level felonies while excluding violent, sex, or other serious offences by statute.

26. In sum, while transparency remains a foundational principle, the American legal system increasingly supports measures that mitigate the long-term consequences of involvement with the criminal justice system, particularly in the context of non-convictions and minor offences.

United Kingdom

27. In the United Kingdom, the disclosure of criminal record information is governed by a composite framework comprising the Rehabilitation of Offenders Act 1974, the Police Act 1997 (Part V), the Police Act 1997 (Criminal Records) Regulations 2002, and the statutory guidance issued under section 113B(4A) of the 1997 Act. The Rehabilitation of Offenders Act 1974 (Exceptions) Order 1975, made under section 4(4) of the 1974 Act, prescribes the circumstances in which spent convictions and cautions may nonetheless be lawfully requested and disclosed.⁶

28. The Rehabilitation of Offenders Act 1974 provides that criminal convictions become “spent” after the expiry of the rehabilitation period, which is determined by reference to the sentence imposed. Once spent, the conviction is generally deemed of no effect for most legal purposes, and the person is not required to disclose it, nor may others lawfully take it into account. These protections, however, are qualified: the Exceptions Order 1975 lists categories of employment, licences, and activities for which the normal protections do not apply and in relation to

⁵ Restoration of Rights Project, ‘50-State Comparison: Limits on Use of Criminal Records in Licensing and Employment’ (Collateral Consequences Resource Center) <https://ccresourcecenter.org/state-restoration-profiles/50-state-comparison-limits-on-use-of-criminal-records-in-licensing-and-employment/>

⁶ Rehabilitation of Offenders Act 1974 (c. 53); Police Act 1997 (c. 50), Part V; Police Act 1997 (Criminal Records) Regulations 2002 (SI 2002/233); Rehabilitation of Offenders Act 1974 (Exceptions) Order 1975 (SI 1975/1023).

which both spent and unspent convictions may be lawfully requested and disclosed.⁷ Amendments introduced by section 193 of the Police, Crime, Sentencing and Courts Act 2022, which came into force on 28 October 2023, further reduced rehabilitation periods and extended the possibility of a conviction becoming spent to custodial sentences of up to four years, subject to specified conditions.

29. Part V of the Police Act 1997 provides for three levels of criminal record disclosure.⁸ A *basic certificate*, as outlined in section 112 of the said Act, is available to any individual and reveals only unspent convictions and conditional cautions. A *standard certificate* under section 113A is available where an exempted question may be lawfully asked under the Exceptions Order and includes all convictions and cautions recorded on central records, subject to statutory filtering.⁹ An *enhanced certificate* under section 113B contains the same information as a standard certificate. However, it may also include relevant non-conviction information held by the police, where, in the opinion of the Chief Officer, the information is likely to be relevant to the role and should be disclosed. In exercising that discretion, the Chief Officer must have regard to the Statutory Disclosure Guidance issued under section 113B(4A),¹⁰ which prescribes a structured assessment of relevance, reliability, necessity, and proportionality. Factors include the seriousness and recency of the conduct, the source and credibility of the information, the opportunity for the applicant to respond, and the relationship of the material to the role in question. In *R (on the application of AR) v. Chief Constable of Greater Manchester Police* [2018] UKSC 47, the Supreme Court affirmed that the

⁷ See Rehabilitation of Offenders Act 1974, s.4(1); Exceptions Order 1975, Arts. 3–5 and Schedules 1-2A

⁸ The Police Act 1997, particularly Part V, established a centralized criminal record disclosure regime. It replaced the earlier decentralized system and created the Disclosure and Barring Service (DBS), now responsible for issuing criminal record certificates and determining whether individuals should be barred from certain types of work.

⁹ A statutory filtering regime was introduced in 2013 and subsequently revised in 2020 following the decisions in *R (T) v Chief Constable of Greater Manchester Police* and *R (P, G and W) v Secretary of State for the Home Department*. These changes were given effect through amendments to the Exceptions Order 1975 and related instruments. Filtering excludes certain old or minor convictions and cautions from disclosure on standard and enhanced certificates. A conviction is not eligible for filtering if it resulted in a custodial or suspended sentence or if it relates to a specified offence listed in Schedule 2A to the Exceptions Order. Otherwise, eligibility depends on the number of convictions, the individual's age at the time, and the passage of a specified period, which is currently eleven years for adult convictions and six years for adult cautions. Youth cautions, reprimands and warnings are no longer disclosable. Filtering prevents inclusion on certificates but does not result in deletion from police records, which remain accessible for operational purposes.

¹⁰ Statutory Disclosure Guidance (Home Office, July 2023), issued under s.113B(4A) Police Act 1997: <https://www.gov.uk/government/publications/statutory-disclosure-guidance>.

inclusion of such material is compatible with Article 8 of the European Convention on Human Rights, provided the framework and guidance are applied conscientiously and with due regard to fairness.

Australia

30. In Australia, the disclosure of criminal record information is not governed by a single national statute but is regulated through a combination of Commonwealth, State, and Territory laws.¹¹ Each level of government has enacted its own spent convictions legislation, prescribing the conditions under which a conviction may be treated as “spent” and thereby excluded from most forms of disclosure. At the Commonwealth level, Part VIIC of the *Crimes Act 1914 (Cth)* establishes the baseline framework.¹² A conviction becomes spent if the person was not sentenced to imprisonment exceeding thirty months, has remained “offence-free” for ten years (or five years in the case of juveniles), and no statutory exclusion applies.¹³ Most States and Territories apply a similar 10-year or 5-year waiting period, although there are notable variations in scope, waiting periods, and eligibility criteria.¹⁴

31. When a conviction is spent, the individual generally acquires a right of non-disclosure. It is, in many cases, an offence for another person or authority to disclose or rely upon such a conviction, subject always to statutory exceptions.¹⁵ These exceptions permit disclosure for specified purposes, including employment or licensing involving children, the elderly, or persons with disabilities; positions in education, aged care, health services, or law enforcement; and contexts involving immigration, citizenship, national security, or firearms regulation.¹⁶ Accordingly, a spent conviction may still lawfully appear on a police check conducted for an

¹¹ See, for example, Crimes Act 1914 (Cth), Part VIIC; Spent Convictions Act 2000 (ACT); Criminal Records Act 1991 (NSW); Criminal Law (Rehabilitation of Offenders) Act 1986 (Qld); Spent Convictions Act 2009 (SA); Annulled Convictions Act 2003 (Tas); Spent Convictions Act 2021 (Vic); Spent Convictions Act 1988 (WA).

¹² Crimes Act 1914 (Cth), ss 85ZM–85ZZW.

¹³ *ibid* ss 85ZM(1), 85ZN, 85ZV; s 85ZL defines excluded offences and exemptions.

¹⁴ See, for example: Criminal Records Act 1991 (NSW), ss 7–10; Spent Convictions Act 2000 (ACT), s 12; Spent Convictions Act 2021 (Vic), ss 6–7; Criminal Law (Rehabilitation of Offenders) Act 1986 (Qld), ss 3, 5.

¹⁵ Crimes Act 1914 (Cth), s 85ZW(1); Spent Convictions Act 2000 (ACT), s 15; Spent Convictions Act 2021 (Vic), s 11.

¹⁶ See, for example: Crimes Act 1914 (Cth), s 85ZZH (exemptions); Spent Convictions Act 2000 (ACT), s 19; Spent Convictions Act 2021 (Vic), Sch 1; Criminal Records Act 1991 (NSW), s 15.

exempted purpose, depending on the governing law of the relevant jurisdiction and the purpose of the request.

32. It is pertinent that disclosure regimes in Australia do not expunge or erase criminal records in the literal sense. The underlying conviction remains on record for law enforcement, judicial, and regulatory purposes, even if it no longer appears on a National Police Certificate.¹⁷

Pakistan

33. The above comparative analysis demonstrates how legal systems with different histories and structures have balanced transparency in criminal justice with fairness, dignity, and rehabilitation for individuals no longer subject to legal sanction. In each case, disclosure is governed by law and accompanied by safeguards tailored to the nature of the data and the context in which it is used. By contrast, Pakistan does not have any law for expunging or sealing criminal records after conviction. There is no equivalent to the graduated disclosure regime found in the United Kingdom under the Police Act 1997 or to the filtering and rehabilitation principles of the Rehabilitation of Offenders Act 1974. The record of conviction remains part of the public record and may be used in subsequent proceedings under the Qanun-e-Shahadat or considered in matters of sentencing or credibility. Limited exceptions are found in section 11 of the Probation of Offenders Ordinance, 1960,¹⁸ and section 19 of the Juvenile Justice System Act, 2018.¹⁹ These statutes do not erase the conviction, but they shield the offender from suffering legal disqualifications arising therefrom.

¹⁷ Australian Criminal Intelligence Commission (ACIC), 'National Police Checks – Spent Convictions', <https://www.acic.gov.au/national-police-checks/spent-convictions>.

¹⁸ The relevant part of section 11 of the Probation of Offenders Ordinance 1960 reads as follows:

11. Effects of discharge and probation.– (1) A conviction of an offence, for which an order is made under section 4 or section 5 for discharging the offender after the due admonition or conditionally or placing him on probation, shall be deemed not to be a conviction for any purpose other than the purposes of the proceedings in which the order is made and of any subsequent proceedings which may be taken against the offender under the provisions of this Ordinance:

Provided that ...

(2) Without prejudice to the foregoing provisions of this section, the conviction of an offender who is discharged after due admonition or conditionally, or who is placed on probation, shall in any event be disregarded for the purposes of any law which imposes any disqualification or disability upon convicted persons, or authorizes or requires the imposition of any such disqualification or disability.

(3) ...

¹⁹ Section 19 of the Juvenile Justice System Act 2018 states:

19. Removal of disqualification attached with conviction.□ Subject to provisions of the Constitution, a juvenile offender convicted under the provisions of this Act shall not suffer a disqualification, if any, attaching to a conviction of an offence under such law.

Police Record Certificates

34. Rule 24.5 of the Police Rules and its amendments require the police to maintain and preserve FIR registers and related records for sixty years. That obligation is undisputed. However, there is no statutory provision authorizing the disclosure of criminal record information through a PRC or upon request by a third party. The preservation mandate cannot be extended to confer an authority on the police to disclose it.

35. The IGP has issued Standing Order No. 2 of 2024, purportedly in exercise of powers under Article 10(3) of the Police Order and section 10 of the PRPSA. The Standing Order regulates the issuance of PRCs and prescribes a mechanism for rectifying and erasing data. It establishes a Verification Committee which, upon receiving an application or court order, must meet within three days and submit its recommendation to the IGP through the DIG/IT. Once approved, the rectification or erasure is carried out by the technical staff under DIG/IT. While instruments such as Standing Orders and SOPs may serve legitimate internal purposes within the police hierarchy, they do not, by themselves, constitute sufficient legal authority for disclosing criminal record information in PRCs. Standing Order No. 2 of 2024 is also deficient, as it prescribes a procedural mechanism but fails to articulate the substantive criteria for determining when rectification or erasure may be allowed.

36. Since Standing Order No. 2 of 2024 purports to derive its authority from section 10 of the PRPSA, it is necessary to examine that provision as well. The Act is primarily procedural in character: it creates mechanisms for the timely delivery of public services that are otherwise recognized or authorized under law. It does not, by itself, create new substantive powers or override constitutional safeguards. Moreover, under section 4(1) of the PRPSA, only those services that are specifically notified in the official Gazette are deemed to be “public services” for the purposes of the Act. There is no indication that the issuance of PRCs (or the disclosure of non-conviction data within them) has been formally notified as required. Hence, reliance on section 10 of the PRPSA to sustain the Standing Order or to justify the present PRC regime is misplaced.

37. Although Mr. Naseem argued in detail on the legality of Standing Order No. 2 of 2024, the Petitioner has not directly challenged its

vires in the present proceedings. Therefore, this Court does not consider it appropriate to strike it down. Accordingly, if a particular disclosure is found to be impermissible on constitutional or legal grounds, the Standing Order may nonetheless be invoked as an internal mechanism to implement corrective action consistent with applicable standards.

38. Criminal records may be classified into three categories: (i) cases resulting in acquittal, discharge, or cancellation where proceedings have concluded without conviction, (ii) cases pending adjudication where investigation or trial is still in progress, and (iii) cases resulting in conviction where guilt has been established by a competent court. I would begin with the first category.

39. The presumption of innocence is a foundational principle of the criminal justice system and is protected under Article 10A of the Constitution. It remains intact throughout the investigation and trial and is only displaced upon conviction. Specifically, the aforesaid presumption is not displaced by (a) the registration of an FIR, (b) the filing of a challan or final investigation report before the trial court by the investigating agency, (c) the framing of charges against an accused by the trial court. In **Muhammad Bashir v. Station House Officer, Okara Cantt., and others** (PLD 2007 SC 539), the Supreme Court of Pakistan stated that an FIR is not an adverse order. Therefore, mere registration of an FIR does not bring any harm to the person against whom it is recorded.

40. The aforementioned presumption is reinforced upon acquittal. In **Muhammad Shafi v. Muhammad Raza and another** (2008 SCMR 329), the Supreme Court held that “an accused is presumed to be innocent in law and if, after a regular trial he is acquitted, he earns a double presumption of innocence and there is a heavy onus on the prosecution to rebut the said presumption.”²⁰ This “double presumption” is not metaphorical; it signifies that an acquitted person’s innocence as well as legal and social standing are restored. It places a higher burden on the State to justify any subsequent action that undermines that position.

41. The courts in Pakistan have considered the effect of acquittal in several cases. In **Dr. Muhammad Islam v. Government of NWFP and**

²⁰ Also see: *Muhammad Yaqoob v. Manzoor Hussain and others* (2008 SCMR 1549), *The State and others v. Abdul Khaliq and others* (PLD 2011 SC 554).

others (1998 SCMR 1993), the Supreme Court held that all acquittals are honourable, whether on merit or based on a compromise. The relevant excerpt is reproduced below:

“Even in the cases where benefit of doubt has been given to the accused, it cannot be said that the charge has been established by the prosecution. The accused are to be treated as innocent unless it is proved on the basis of the best possible evidence that they are connected with the commission of the crime and, as such, deserve to be convicted to meet the ends of justice. The doubt itself shall destroy the very basis of the prosecution case. In this view of the matter, the accused shall be deemed to have honourably been acquitted even where the benefit of doubt has been extended to them ... [A]ll acquittals, even if these are based on benefit of doubt, are honourable for the reason that the prosecution has not succeeded to prove their cases against the accused on the strength of evidence of unimpeachable character. It may be noted that there are cases in which the judgments are recorded on the basis of compromise between the parties and the accused are acquitted in consequence thereof. What shall be the nature of such acquittals? All acquittals are certainly honourable. There can be no acquittals, which may be said to be dishonourable. The law has not drawn any distinction between these types of acquittals.”

42. In **Chairman, Agricultural Development Bank of Pakistan and another v. Mumtaz Khan** (PLD 2010 SC 695), the Supreme Court reaffirmed the above observations and further stated that “an acquittal had no shades and there was no concept of honourable and dishonourable acquittals.”

43. A somewhat contrary view may be found in the minority opinion of Qazi Faez Isa, J., in **Mureed Sultan and others v. The State and another** (2018 SCMR 756). In that case, the accused were convicted under section 302(b) PPC and sentenced to death. During the pendency of their appeal before the Supreme Court, they sought release on the ground that they had effected a compromise with the legal heirs of the deceased. The Sessions Judge confirmed its genuineness. A three-member Bench unanimously accepted the compromise, but their Lordships differed on how the main appeal should be disposed of. The majority set aside the conviction and sentence and “acquitted” the accused under section 345(6) Cr.P.C. In dissent, Isa, J. observed that while section 345 Cr.P.C. permits the composition of certain offences, its sub-section (6) only states that the composition “shall have the effect of an acquittal.” It does not amount to a judicial finding of innocence. In his view, where the heirs of the deceased compound the offence, the conviction remains unless set aside by a competent appellate or revisional court. The sentence is brought to an end,

but the verdict of guilt stands. His Lordship concluded that an acquittal cannot result merely from acceptance of a compromise; it must follow a reasoned judicial determination by a competent court.²¹

44. In view of the foregoing discussion, the principle that all acquittals are “honourable” is now firmly embedded in our jurisprudence. An acquittal by a court of competent jurisdiction conclusively clears an accused of all charges or allegations, and the presumption of innocence is restored in full. The individual stands in the same position as one who was never prosecuted. The same principle applies when a case is cancelled or the accused is discharged, except in cases where the order of discharge is set aside and reinvestigation is directed in accordance with the law. If the legislature intends to classify or differentiate between acquittals, it must do so by express enactment. Hence, Category-1 matters (acquittal, discharge, or cancellation) must be excluded entirely from PRCs unless expressly authorized and justified by law. Their continued disclosure in PRCs contravenes Articles 4 and 14 of the Constitution. In **Jawwad S. Khawaja and others v. Federation of Pakistan and others** (PLD 2024 SC 337), Ayesha A. Malik J. observed that the right to dignity guides all actions of the State and must be protected at all times. She wrote:

“The State’s duty to secure human dignity is the lynchpin as it forms the bedrock upon which all fundamental rights stand. The fundamental right to dignity acts as a compass that orients people and State functionaries in all their actions. Consequently, as a fundamental right, it becomes a matter of judicial interpretation to determine whether executive decisions or legislative enactments have encroached upon these rights. It places a positive obligation on the State and requires it at all times to protect and enforce the rights of the people so as to maintain their dignity. The right to dignity lends real meaning to human rights as it is inherent in every right protected by international human rights law.”²²

²¹ Qazi Faez Isa, J. expressed the same view in Criminal Appeal No. 328 of 2012 (Amir Hani Muslim, and Sardar Tariq Masood, JJ. dissenting), and *Shafqat @ Shafaat v. The State* (PLD 2019 SC 43). In the latter case, Yahya Afridi, J. concurred with him while Gulzar Ahmed, J. dissented. However, in *Suo Motu Case No.3 of 2017* (PLD 2018 SC 703), which was decided prior to *Shafqat’s case*, the Supreme Court declared the legal position as follows:

(i) As provided by the provisions of section 338-E(1), P.P.C. and the first proviso to the same and as already declared by this Court in the case of *Chairman Agricultural Development Bank of Pakistan and another v. Mumtaz Khan* (PLD 2010 SC 695) as a result of a successful and complete compounding of a compoundable offence in a case of Ta’zir under section 345, Cr.P.C., with permission or leave of the relevant court where required, an accused person or convict is to be acquitted by the relevant court which acquittal shall erase, efface, obliterate and wash away his alleged or already adjudged guilt in the matter apart from leading to setting aside of his sentence or punishment, if any.

(ii) In the context of the provisions of section 345(6), Cr.P.C. the effect of an acquittal recorded by a court on the basis of a successful and complete compounding of a compoundable offence shall include all the benefits and fruits of a lawful acquittal.

²² Internal citations omitted.

45. It must, however, be clarified that the exclusion of acquitted cases from PRCs does not preclude the initiation or continuation of departmental proceedings under service law or the Police Rules whose objectives differ from those of criminal prosecution. Rule 16.3 of the Police Rules expressly permits disciplinary action, in limited circumstances, even after a judicial acquittal, such as where the criminal charge has failed on technical grounds, or where witnesses have been won over. In **Muhammad Nawaz Khan v. Inspector General of Police, Punjab, and others** [2023 PLC (C.S.) 884], the Supreme Court reaffirmed that an acquittal in criminal proceedings does not automatically bar departmental inquiry, since service law proceedings are inquisitorial in nature and guided by considerations of suitability and discipline rather than proof of criminal guilt. This distinction preserves the autonomy of internal disciplinary mechanisms while upholding the constitutional safeguards that prohibit disclosure of concluded criminal matters in public documents such as PRCs.

46. Category-2 (pending cases) presents a more nuanced consideration. There may exist legitimate, though narrowly defined, public policy grounds for disclosing certain pending proceedings – not only in cases where an individual is a fugitive from law, but also where the nature of the alleged offence and the context of the certificate (e.g., for employment in law enforcement, financial institutions, or roles involving vulnerable persons) necessitate a rigorous background check. Nevertheless, such disclosure should not be automatic, indiscriminate, or left to unstructured administrative discretion. It must be regulated by specific legislation that clearly defines (i) the categories of roles or purposes for which disclosure is permissible; (ii) the nature and gravity of offences that may be disclosed; (iii) the requirement of relevance to the purpose sought; and (iv) the tests of necessity and proportionality.

47. Category-3 concerns past convictions. These cannot be masked or withheld from disclosure except through specific legislation. It is pertinent that contemporary constitutional jurisprudence (as also reflected in the comparative law discussed above) favours a calibrated approach over blanket disclosure. Principles such as proportionality, relevance, the time elapsed since conviction, and the rights to privacy and

dignity weigh against the continued disclosure of past convictions without regard to context. Any future legislation governing the disclosure of conviction records should take these evolving standards into account.

48. In **Zulfiqar Ali v. Ex officio Justice of Peace and others** (PLD 2023 Lahore 512), this Court issued the following directions for submission of an accused's criminal history in judicial proceedings:

- “(i) While producing the record pertaining to the criminal history of any petitioner/accused, the list must show the status of criminal case(s) against him. Status connotes whether such case is still pending or had culminated in acquittal, conviction, discharge or withdrawal.
- (ii) Fate of every criminal case must be entered in the relevant Police Register maintained under the Punjab Police Rules, 1934, immediately after the pronouncement of judgment/order, and the same should also be entered in PSRMS.
- (iii) The final fate of a criminal case is always decided by the court, therefore, a better coordination mechanism must be evolved/improved to promptly convey the judgment/order of the court to the police station concerned for its entry in the relevant record.
- (iv) Instructions issued to the District Heads of the Punjab Police regarding the submission of the criminal history of the petitioner/accused by the Additional Inspector General of Police (Investigation) shall be strictly complied with.”

49. Respondent No.1 cites *Zulfiqar Ali* to justify the inclusion of acquitted cases in the PRC, but this reliance is misconceived. That order pertained exclusively to the submission of criminal records in judicial proceedings (such as bail or *habeas corpus*), where a person's antecedents may bear on judicial discretion. The directions issued therein were intended solely to ensure the accuracy and completeness of police records submitted to courts. They did not address or authorize the disclosure of such data in documents like PRCs. The Court in *Zulfiqar Ali* did not examine the principle of legality under Article 4 or the right to dignity under Article 14 of the Constitution. Therefore, the judgment must be confined strictly to its context and cannot be read as validating the PRC practice challenged in this case.

50. Turning to the Advocate General's submissions, he defends the current format of the PRC on the ground that it discloses the fact of acquittal and includes a note stating that the case has “no adverse effect.” I agree with Mr. Naseem that such a qualification may mitigate the impact of disclosure, but it does not eliminate the stigma of a criminal accusation.

51. The Advocate General seeks to justify the mention of an FIR in an acquitted case on the basis of the decision in *R (on the application of AR) v. Chief Constable of Greater Manchester Police*, [2018] UKSC 47. In that case, the claimant AR had been acquitted of rape, but the police disclosed the incident in the Enhanced Criminal Record Certificate (ECRC) under section 113B of the Police Act 1997. The issue before the U.K. Supreme Court was whether the interference with AR's private life caused by such disclosure was proportionate, having regard to the seriousness and relevance of the allegation to the position sought. Delivering the leading judgment, Lord Carnwath observed that the fact of the charge and acquittal was already a matter of public record and might have reached a potential employer through other means. Its disclosure was justified in that context by "the seriousness of the alleged offence, its relevance to the position applied for, and its comparatively recent occurrence." The position in Pakistan is materially different. There is no statutory instrument comparable to the Police Act 1997 that authorizes the issuance of PRC for public purposes, or that regulates the disclosure of non-conviction information. The entire PRC practice rests on administrative instructions issued by the police, without legislative oversight, defined procedures, or safeguards for affected individuals. In this legal vacuum, the principle of legality, as outlined in Article 4 of the Constitution, requires strict judicial scrutiny of administrative action. The jurisprudence of the United Kingdom, developed within a statutory framework that expressly authorizes disclosures and provides for independent oversight through the Disclosure and Barring Service (DBS), cannot be applied to Pakistan in the absence of comparable legislation.

52. The Advocate General's contention that masking acquitted cases may cause visa complications because foreign authorities could misinterpret the omission as concealment is speculative. It does not warrant the indiscriminate disclosure of acquitted cases, which violates Articles 4 and 14 of the Constitution. The proper approach is to develop a uniform federal policy. Currently, the absence of such a policy has led to divergent practices among provincial police departments, which compounds the problem.

53. The contention that a PRC is issued only at the request of the individual concerned, and is therefore consent-based, does not withstand scrutiny. A citizen who applies for a document required for a visa or other official purpose cannot be said to have waived their constitutional rights merely by initiating the request. Consent given under administrative compulsion is not voluntary.

Case in hand

54. The Petitioner was acquitted in FIR No. 570/2016 by a competent court vide order dated 31.07.2017 under section 249-A Cr.P.C. The Petitioner has submitted a certified copy of the judicial record to confirm this fact. However, the PRC issued to her incorrectly states that the acquittal occurred due to the withdrawal of prosecution under section 494 Cr.P.C. This mischaracterization is not merely semantic; it carries substantive legal consequences. Section 249-A Cr.P.C. empowers a Magistrate to acquit an accused at any stage of the proceedings if the charge is found to be groundless. It is a judicial act founded on an objective appraisal of the record. In contrast, section 494 Cr.P.C. permits the Public Prosecutor to withdraw from prosecution with the court's consent, which may or may not involve an assessment on the merits. Substituting a judicial acquittal under section 249-A with a withdrawal of prosecution by the State under section 494 implies that the termination of proceedings was administrative rather than adjudicative.

55. In **Waqas Khan and others v. The State** (PLD 2025 Peshawar 67), the Peshawar High Court held that once an individual is acquitted by a competent court of law, all allegations mentioned in the FIR are effaced, and the person must be presumed and treated as innocent under the law. Accordingly, the inclusion of FIR details and acquittal orders, even if based on compromise, in character certificates intended for police clearance is neither lawful nor justifiable. It undermines the very purpose and effect of the acquittal. A similar view was adopted by the Islamabad High Court in **Sayed Dawood Shah v. IGP** (W.P. No. 1491/2025), where the continued reference to a concluded criminal case in a PRC was found inconsistent with the principles of fairness and dignity. Therefore, the Petitioner is entitled to have the reference to FIR No. 570/2016 expunged from her PRC.

56. The Petitioner has prayed that her name be deleted from PSRMS and CRMS databases. This relief cannot be granted. The police are under a statutory obligation, as per Rule 24.5 of the Police Rules, to maintain a chronological record of FIRs, including entries relating to cancellation, discharge, or acquittal, for a period of sixty years. This Court cannot issue a writ requiring the deletion or suppression of entries that are lawfully preserved as part of those records. However, the Petitioner remains entitled to protection against the inclusion of such entries in her PRC where the underlying case has culminated in an acquittal.

57. In view of the above, this petition is allowed to the following extent. The Respondents shall, within ten days of receipt of a certified copy of this judgment, issue a revised Police Record Certificate to the Petitioner omitting any reference to FIR No. 570/2016. This direction relates solely to the content of the certificate and does not affect the preservation or annotation of internal police records, which shall remain subject to applicable law. Nothing in this judgment precludes disclosure where specifically required by statute or by an order of a competent court.

58. No order as to costs.

(Tariq Saleem Sheikh)
Judge

Naeem

Announced in open court on _____

Judge

Approved for reporting

Judge